Section D: Hiring and Personnel

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Effective date: Jan. 1, 2027. Review cycle: once a year.

Regulatory basis: K.A.R. 28-51-103(b)(1)(C), (d), (e); K.S.A. 65-5117; KDHE Application Guide, Personnel and Background Checks sections. Guidance: Fair Credit Reporting Act, 15 U.S.C. 1681b; FTC, Using Consumer Reports: What Employers Need to Know; EEOC and FTC, Background Checks: What Employers Need to Know; AIG, Nationwide, and Morris Garritano on employee-owned vehicles used for business.

D-1. Hiring Process

Golden Rule Home Care & Concierge Services LLC hires only qualified staff in line with written job descriptions.[1] The administrator runs every hire.[2] Open jobs are posted on the agency website, Facebook, Nextdoor, and Care.com, and shared by word of mouth.[3] Each applicant completes an application, an interview, reference checks, credential checks, and a criminal background check before any offer is final.[4]

A supportive care worker must be at least 18 and must have a driver's license, auto insurance, reliable transportation, prior experience, and a clean record.[5] Every new caregiver serves a 90-day probation period.[6]

D-2. Interviewing

The administrator interviews each applicant using the agency interview form.[6] The interview covers work history, experience with older adults or clients with special needs, availability, driving, and the limits of supportive care.[7] The form also asks:[7]

1. Why do you want to be a caregiver?
2. What personal qualities, strengths, or life experiences would make you a good caregiver?
3. How would you handle it if a client with dementia says something hurtful or accuses you of something untrue?
4. How would you preserve a client's dignity and make them comfortable while helping with deeply personal tasks like showering or using the bathroom?
5. How do you handle stress or emotionally draining days?
6. If you were caring for my loved one and they had to be taken to the hospital for an emergency, what immediate steps would you take?
7. What would you do if it's the end of your shift and your replacement hasn't arrived?

D-3. Reference Checks

The agency checks three references for each new hire, and at least one must be a past employer or supervisor.[8] If a reference does not answer after two tries, the administrator asks the applicant for another reference.[8] Each check is recorded on the reference check form with the date, the person reached, and the answers, and is filed in the personnel record before employment starts.[8]

D-4. Credential Validation

The administrator verifies any license, certification, or degree a position requires.[9] Each degree is supported by official transcripts.[9] Any Kansas license or certification is confirmed with the issuing board or registry, and the printout or confirmation is filed in the personnel record.[10]

D-5. Criminal Background Checks

The Kansas Department of Health and Environment (KDHE) licenses the agency.[11] The Kansas Department for Aging and Disability Services (KDADS) runs the background check and is the agency's only background check vendor.[12]

Before each KDADS request, the administrator searches the federal OIG exclusion list (oig.hhs.gov/exclusions) and the National Sex Offender Public Website (nsopw.gov) and prints both results.[13][14] The administrator then submits and pays for the eligibility check under K.S.A. 65-5117 in the KDADS system.[12][15] KDADS obtains Kansas criminal history from the KBI.[16] The check is name-based for now, and KDHE says national fingerprint checks will be phased in.[17] The fee is $10 per name plus a card processing fee.[18] The alternate administrator may submit the request at the administrator's request when the administrator is away or unable to.[19]

The KDADS Criminal Record Check program covers two required checks: the KBI criminal history check and the Kansas Nurse Aide Registry.[20] Golden Rule also checks the DCF Adult Abuse, Neglect and Exploitation Central Registry for each applicant, but does not request the DCF Child Abuse and Neglect Central Registry check.[21]

The personnel file holds the OIG and sex offender search printouts, a copy of the eligibility determination request sent to KDADS, the KDADS criminal history result and any registry findings.[22] Results are kept in the confidential file described in D-10.[23] Only the administrator sees criminal history results.[23] The alternate administrator may see them only while acting for the administrator, at the administrator's request, during an absence or a period when the administrator cannot perform her duties.[19]

The agency runs a new background check every two years and after any allegation of abuse, neglect, or exploitation against the employee.[24]

The current State of Kansas list of prohibited offenses under K.S.A. 39-970 and 65-5117 is attached to this policy.[25] [ATTACH: the current Prohibited Offenses list under K.S.A. 39-970 and 65-5117.]

D-6. Provisional Employment

K.A.R. 28-51-103(e) allows a one-time provisional hire for up to 60 calendar days while KDADS results are pending, under supervision by a fully trained employee.[26] Golden Rule Home Care & Concierge Services LLC does not use provisional employment.[27] No new hire starts work until the background check is complete and reviewed by the administrator.[27]

D-7. Performance Evaluations

Each employee receives a written performance evaluation within six months of hire and once a year after that.[28] The 90-day probation review does not replace the six-month evaluation.[29] The administrator performs evaluations.[29] If a manager or supervisor is hired later, that person may perform them at the administrator's request.[29] Signed evaluations are filed in the personnel record.[28]

D-8. Health Records and TB Testing

Before working with clients, each employee provides:[30]

1. A self-reported health history;[31]
2. A health assessment by a physician, nurse practitioner, clinical nurse specialist, physician assistant, or registered nurse certifying the employee can perform the job functions in the job description; and[32]
3. A current two-step tuberculosis skin test following CDC guidelines for health care workers.[33]

Each skin test in the two-step series takes two visits.[34] The PPD (purified protein derivative) is placed under the skin at the first visit, and the reaction is read 48 to 72 hours later at the second.[34] A new health assessment is done every two years and after any significant health event.[35] The agency pays for required health assessments and TB tests.[36] No routine TB test is given after the first one unless there is a known exposure or ongoing spread in the setting.[37] Each employee receives TB education every year, as set in Section I.[38] Current K.A.R. and CDC guidance support this approach; any final change from the 2025 KDHE proposals will be folded in when published.[37]

D-9. Competency Before Client Contact

No worker provides care to a client without the manager present until the worker shows competency in every area of the Section I checklist.[39]

D-10. Personnel File Contents

Each employee has a current personnel record containing:[40]

1. Position title;[41]
2. Signed and dated job description with qualifications;[42]
3. Proof of any required license, certification, or degree, with official transcripts for degrees;[43]
4. Performance evaluations at six months and yearly;[44]
5. Reference check documentation completed before employment;[45]

6. Health history, health assessments, and TB results;[46]
7. KDADS eligibility determination request; and[47]
8. Criminal history and registry results.[48]

Training records, including abuse, neglect, and exploitation training and ongoing training, are also filed in each record.[49] Personnel files are kept in a locked cabinet in the office and on a locked computer.[50] Medical records and criminal history results are kept in their own locked cabinet and computer folder, separate from the regular personnel file.[51] When an employee leaves, the file moves to a separate locked cabinet for former employees and is kept indefinitely.[52] If the business closes or changes ownership, files may be destroyed once they have been kept seven years after the employee left.[53] If a claim or investigation is open, the files are kept until it is resolved.[54]

D-11. Driver Verification

This applies to every employee who drives for work, including in a personal vehicle.[55] Every employee in the same role goes through the same steps.[7]

Before an employee drives for work, the administrator collects:[56]

1. A copy of a valid driver's license;[56]
2. A current auto insurance declarations page or certificate of insurance showing the named insured, the vehicle, the policy dates, and the liability limits; and[56]
3. The employee's written confirmation that the insurer knows the vehicle is used for work and the policy has no business-use exclusion.[57]

Golden Rule Home Care & Concierge Services LLC verifies that the driver told the insurer of business use. The driver pays any premium increase. The agency may choose to cover that increase later.

The agency's business liability insurer decides whether employee-held auto insurance is accepted and what limits it requires.[57] Golden Rule requires at least $100,000 per person, $300,000 per accident and $100,000 for property damage, or higher limits if required by the agency's business liability insurer.[58] The driver's personal auto policy is enough. No additional hired and non-owned auto or commercial auto policy is required.

The employee gives new proof at each policy renewal.[57] If coverage lapses or falls below the minimum, the employee does not drive for work until new proof is on file.[57]

A driving record obtained through a screening company is a consumer report under the Fair Credit Reporting Act.[59] Before ordering one, the administrator gives the employee a written notice, in a document by itself, that a driving record may be used for employment decisions, and gets the employee's written permission.[60] If records will be checked throughout employment, the notice says so.[61] Before acting on a record, the administrator gives the employee a copy of it and "A Summary of Your Rights Under the Fair Credit Reporting Act."[62] After acting, the administrator gives the employee notice with the screening company's name, address, and phone number, a statement that the company did not make the decision, and the employee's right to dispute the record and to get a free copy of the report from the screening company if the employee asks within 60 days.[63]

The license copy, proof of insurance, driver agreement, and driving record checks are kept in the personnel file.[64]

Adoption

The governing body of Golden Rule Home Care & Concierge Services LLC adopts the policies in this section.[65] Taylor Anderson, as sole member and owner of the LLC, approves them and reviews them once a year or sooner when a rule changes.[66]

Signature: _____ **Date:** _____

Taylor Anderson, Owner, Golden Rule Home Care & Concierge Services LLC

Effective date: Jan. 1, 2027. Next review date: Jan. 1, 2028.

Client Review

Client redlines: mark any changes on this section, then sign and date below. A digital signature (for example DocuSign) is accepted in place of ink.

Client signature: _____

Printed name: _____

Date: _____

Client signature (digital)

Date signed

Notes

1. K.A.R. 28-51-103(b)(1)(C). Required: The administrator must employ qualified staff in line with job descriptions. Source: Kansas Register, May 5, 2022.
2. K.A.R. 28-51-100(a). Allowed: The administrator is directly responsible for management and day-to-day operations. Having the administrator run each hire fits that role. Source: Kansas Register, May 5, 2022.
3. K.S.A. 44-1009(a)(3); K.S.A. 44-1002(b). Prohibited: Ads, application forms and hiring questions may not express a limit based on race, religion, color, sex, disability, national origin or ancestry. The act covers employers with four or more employees. Where jobs are posted is agency choice. Source: K.S.A. 44-1009; K.S.A. 44-1002.
4. K.A.R. 28-51-103(d)(5); K.S.A. 65-5117(e). Required: Reference checks must be documented before employment, and the operator must request a KDADS eligibility determination. The application and interview steps are agency choice. Source: Kansas Register, May 5, 2022; K.S.A. 65-5117.

5. K.S.A. 65-5117(b); K.S.A. 44-1009(a)(1). Allowed: The agency may set job qualifications. The statute bars employing anyone with a listed offense or an adverse registry finding, and the Kansas Act Against Discrimination bars qualifications that discriminate by protected class without a valid business necessity. Source: K.S.A. 65-5117; K.S.A. 44-1009.
6. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(b)(1)(D), written personnel policies, Kansas Register.
7. K.S.A. 44-1009(a)(3). Prohibited: Hiring questions may not express a limit based on race, religion, color, sex, disability, national origin or ancestry. The interview topics themselves are agency choice. Source: K.S.A. 44-1009.
8. K.A.R. 28-51-103(d)(5). Required: The personnel record must document reference checks completed before employment. The number of references and the follow-up steps are agency choice. Source: Kansas Register, May 5, 2022.
9. K.A.R. 28-51-103(d)(3). Required: The personnel record must hold evidence of any required license or certification, and each degree must be supported by official transcripts. Source: Kansas Register, May 5, 2022.
10. K.A.R. 28-51-103(d)(3). Allowed: The rule requires evidence of licensure or certification. Confirming it with the issuing board is agency choice. Source: Kansas Register, May 5, 2022.
11. K.S.A. 65-5102. Required: An agency providing supportive care services must be licensed under the home health agency act. KDHE lists non-medical supportive care as a type of home health agency license. Source: K.S.A. 65-5102; KDHE Non-Medical Supportive Care Services.
12. K.S.A. 65-5117(e). Required: The operator must request an eligibility determination from KDADS. Using no other background check vendor is agency choice. Source: K.S.A. 65-5117.
13. No state or federal rule applies; agency choice. Framing source: HHS OIG Exclusions search.
14. No state or federal rule applies; agency choice. Framing source: National Sex Offender Public Website.
15. K.S.A. 65-5117(d)(4)(A), (k)(1). Required: The employer pays a reasonable fee to KDADS for each applicant. KDADS sets the amount by regulation. Source: K.S.A. 65-5117.
16. K.S.A. 65-5117(d)(1). Required: The KBI releases conviction and adjudication records for home health agency workers to KDADS. Source: K.S.A. 65-5117.
17. K.S.A. 65-5117(l). Allowed: KDADS may phase in the check changes. KDADS says checks are still name-based, and KDHE says national fingerprint checks will be phased in. Source: K.S.A. 65-5117; KDADS Criminal Record Check Program; KDHE Non-Medical Supportive Care Services.
18. K.S.A. 65-5117(k)(1); KDADS card authorization form. Required: KDADS sets the fee. Its card authorization form lists the criminal record check at $10.00 per name and says a credit card company service fee of 3.04% is added to the total. Source: K.S.A. 65-5117; KDADS Credit Card Authorization form.
19. K.A.R. 28-51-103(c). Required: The alternate administrator is available whenever the administrator is not and handles all administrator duties in that absence. Source: Kansas Register, May 5, 2022.
20. K.S.A. 65-5117(b)(1), (d)(1); K.A.R. 28-51-103(d)(9). Required: No one with an adverse finding on a state or national registry defined by KDADS rule may work for the agency, and the personnel record must hold the criminal history results and registry findings. The KBI releases criminal history to KDADS, and KDADS says its system automatically checks the Kansas Nurse Aide Registry for prohibitions, including adult abuse, neglect or exploitation findings. Source: K.S.A. 65-5117; Kansas Register, May 5, 2022; KDADS Criminal Record Check Program.
21. No state or federal rule applies; agency choice. No KDADS rule found names the DCF registries as required checks for a home health agency. DCF says the adult registry check is free and the child registry check may cost $10 per request. Framing source: DCF, Abuse and Neglect Central Registries Portal Guide.
22. K.A.R. 28-51-103(d)(8), (9). Required: The personnel record must hold a copy of the KDADS eligibility determination request and the criminal history and registry results. Filing the OIG and sex offender printouts is agency choice. Source: Kansas Register, May 5, 2022.
23. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(d), personnel records, Kansas Register.
24. K.S.A. 65-5117(i). Allowed: A new check is not required for an applicant checked within the past year. No rule requires a recheck every two years or after an allegation; that is agency choice. Source: K.S.A. 65-5117.
25. K.S.A. 65-5117(b). Prohibited: Persons with listed offenses may not work for the agency, and KDADS publishes the prohibited offense list. Source: K.S.A. 65-5117; KDADS Criminal Record Check Program.
26. K.A.R. 28-51-103(e); K.S.A. 65-5117(e). Allowed: An agency may hire an applicant once on a provisional basis for 60 calendar days while KDADS results are pending, with supervision by a fully trained employee. Source: Kansas Register, May 5, 2022; K.S.A. 65-5117.

27. K.A.R. 28-51-103(e). Allowed: Provisional hiring is optional, so declining to use it is agency choice. Source: Kansas Register, May 5, 2022.
28. K.A.R. 28-51-103(d)(4). Required: Performance evaluations within six months of employment and every year after that. Source: Kansas Register, May 5, 2022.
29. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(d)(4), evaluations, Kansas Register.
30. K.A.R. 28-51-103(d)(6). Required: Before working with clients, each employee's health record must include a self-reported health history, a health assessment and a two-step TB skin test. Source: Kansas Register, May 5, 2022.
31. K.A.R. 28-51-103(d)(6)(A). Required: A self-reported health history. Source: Kansas Register, May 5, 2022.
32. K.A.R. 28-51-103(d)(6)(B). Required: A health assessment by a physician, nurse practitioner, clinical nurse specialist, physician assistant or registered nurse certifying the employee can perform the job functions in the job description, done before working with clients. Source: Kansas Register, May 5, 2022.
33. K.A.R. 28-51-103(d)(6)(C). Required: A current two-step TB skin test following CDC testing guidelines for health care workers, taken before working with clients. Source: Kansas Register, May 5, 2022.
34. K.A.R. 28-51-103(d)(6)(C); CDC baseline TB testing page. Required: The rule requires a two-step skin test following CDC guidelines. CDC says a designated, trained provider places and reads each test, the result is read within 48 to 72 hours, and the second test is given 1 to 3 weeks after the first result is read. Source: Kansas Register, May 5, 2022; CDC, Baseline TB Testing for Health Care Personnel.
35. K.A.R. 28-51-103(d)(7). Required: A new health assessment at least every two years or after a significant health event. Source: Kansas Register, May 5, 2022.
36. No state or federal rule applies; agency choice.
37. K.A.R. 28-51-103(d)(6)(C); CDC. Allowed: The Kansas rule requires the two-step test before client contact and sets no repeat test. CDC says health care personnel should not have routine TB testing after baseline unless there is a known exposure or ongoing transmission. KDHE's 2025 Summary of Changes Guide describes draft rules that would add TB testing requirements. Source: Kansas Register, May 5, 2022; CDC, TB testing for health care personnel; KDHE Summary of Changes Guide, 2025.
38. CDC, TB screening and testing of health care personnel. Allowed: CDC recommends annual TB education for all health care personnel. No Kansas rule found requires it; adopting it is agency choice. Source: CDC, TB testing for health care personnel.
39. K.A.R. 28-51-117(c). Required: Each worker must show competency before providing services without the manager present. Source: Kansas Register, May 5, 2022.
40. K.A.R. 28-51-103(d). Required: A current personnel record must be kept for each employee with the listed contents. Source: Kansas Register, May 5, 2022.
41. K.A.R. 28-51-103(d)(1). Required: The title of the employee's position. Source: Kansas Register, May 5, 2022.
42. K.A.R. 28-51-103(d)(2). Required: A signed and dated job description that includes the qualifications. Source: Kansas Register, May 5, 2022.
43. K.A.R. 28-51-103(d)(3). Required: Evidence of licensure or certification if required, and official transcripts for each degree. Source: Kansas Register, May 5, 2022.
44. K.A.R. 28-51-103(d)(4). Required: performance evaluations within six months of employment and every year after that. Source: Kansas Register, May 5, 2022.
45. K.A.R. 28-51-103(d)(5). Required: documentation of reference checks before employment. Source: Kansas Register, May 5, 2022.
46. K.A.R. 28-51-103(d)(6), (7). Required: The health record, including the health history, health assessments and TB test. Source: Kansas Register, May 5, 2022.
47. K.A.R. 28-51-103(d)(8). Required: A copy of the eligibility determination request submitted to KDADS. Source: Kansas Register, May 5, 2022.
48. K.A.R. 28-51-103(d)(9). Required: Results of the criminal history record check and any state or national registry findings. Source: Kansas Register, May 5, 2022.
49. K.A.R. 28-51-103(g)(1); K.A.R. 28-51-117(d). Required: Abuse, neglect and exploitation training must be documented in each personnel file, and the subject and date of ongoing training must be documented in each worker's file. Source: Kansas Register, May 5, 2022.
50. No state or federal rule applies; agency choice. Framing source: 16 CFR 682.3, disposal of consumer report information.
51. 29 CFR 1630.14(c)(1). Allowed: Under the ADA, medical information from employment exams and inquiries is kept in separate, confidential medical files. The ADA applies to employers with 15 or more employees, so for now this is agency choice that matches the federal rule. Source: 29 CFR 1630.14; EEOC, small business coverage.

52. 29 CFR 1602.14; 29 CFR 516.5. Allowed: No KDHE rule found sets how long personnel files are kept. Federal rules require at least one year for personnel records at employers with 15 or more employees and three years for payroll records. Keeping files indefinitely meets both. Source: 29 CFR 1602.14; 29 CFR 516.5.

53. 29 CFR 1602.14; 29 CFR 516.5; 16 CFR 682.3. Allowed: Seven years exceeds the federal one-year and three-year minimums. Driving or background reports from a screening company must be disposed of securely. Source: 29 CFR 1602.14; 29 CFR 516.5; 16 CFR 682.3.

54. 29 CFR 1602.14. Required: Once a discrimination charge is filed, an employer with 15 or more employees keeps all related personnel records until final disposition. Holding files for any open claim is agency choice beyond that. Source: 29 CFR 1602.14.

55. No state or federal rule applies; agency choice. Framing source: K.S.A. 40-3104, Kansas auto insurance requirement.

56. K.S.A. 40-3104(a); K.S.A. 40-3107(e). Required: Every vehicle owner must carry auto liability insurance, with Kansas minimum limits of $25,000 per person, $50,000 per accident and $25,000 for property damage. Collecting proof is agency choice. Source: K.S.A. 40-3104; K.S.A. 40-3107.

57. No state or federal rule applies; agency choice. Framing source: K.S.A. 40-3107(e), Kansas minimum auto limits.

58. Agency choice, not a state minimum. Kansas minimum auto liability limits are $25,000 per person, $50,000 per accident and $25,000 for property damage. Nationwide and Morris & Garritano cite $100,000 per person and $300,000 per accident; neither gives a property damage figure. The $100,000 property damage floor is Golden Rule policy. Commercial guidance: Nationwide; Morris & Garritano. Statutory source: K.S.A. 40-3107(e).

59. 15 U.S.C. 1681a(d); 15 U.S.C. 1681b(b). Required: A report from a consumer reporting agency used for employment decisions is a consumer report, and the FCRA employment rules apply to it. Source: 15 U.S.C. 1681a; 15 U.S.C. 1681b.

60. 15 U.S.C. 1681b(b)(2). Required: Before getting a consumer report for employment, the employer gives a clear written disclosure in a document that consists only of the disclosure, and gets written permission. Source: 15 U.S.C. 1681b.

61. 15 U.S.C. 1681b(b)(2). Allowed: The written disclosure must say a consumer report may be obtained for employment purposes. Stating that checks continue during employment is agency choice that fits the rule. Source: 15 U.S.C. 1681b.

62. 15 U.S.C. 1681b(b)(3). Required: Before any adverse action based on the report, the employer gives a copy of the report and a written description of the consumer's rights. Source: 15 U.S.C. 1681b.

63. 15 U.S.C. 1681m(a). Required: After adverse action, the employer gives the reporting agency's name, address and phone number, a statement that the agency did not make the decision, and notice of the right to a free copy within 60 days and to dispute the report. Source: 15 U.S.C. 1681m.

64. No state or federal rule applies; agency choice. Framing source: K.A.R. 28-51-103(d), personnel records, Kansas Register.

65. K.A.R. 28-51-103(a)(3). Required: The governing body adopts, revises and approves the agency's policies and procedures as needed. Source: Kansas Register, May 5, 2022.

66. K.A.R. 28-51-103(a)(3). Allowed: The governing body revises policies as needed. A yearly review is agency choice. Source: Kansas Register, May 5, 2022.